

Nusantara Enterprise Master Services Agreement

Parties and Recitals

This Nusantara Enterprise Master Services Agreement is entered into by Nusantara Integrated Defense Services Authority, a fictional Indonesian defense-sector services organization, and Maritime Systems Operations Pte. Ltd., a fictional enterprise technology supplier.

The agreement establishes a master framework for multiple statements of work covering platform support, integration services, service desk operations, field maintenance coordination, reporting, and operational analytics for non-combat defense logistics environments.

The parties acknowledge that the services may involve sensitive operational metadata, protected procurement records, configuration data, incident information, and support materials that require controlled handling throughout the service lifecycle.

Section 1. Definitions

Customer Data means all data, records, documents, logs, configuration files, support tickets, service reports, access records, diagnostic extracts, and derivative records submitted by or on behalf of Buyer.

Sensitive Data means Customer Data categorized by Buyer as restricted, mission-sensitive, regulated, export-controlled, personal, security-relevant, or otherwise requiring enhanced handling controls.

Deliverables means work product, configuration, documentation, scripts, reports, interfaces, dashboards, and other materials created specifically for Buyer under a statement of work.

Section 2. Master Services Framework

Supplier shall provide services only under executed statements of work. Each statement of work shall identify scope, milestones, deliverables, service levels, acceptance criteria, dependencies, environments, reporting obligations, and authorized Buyer points of contact.

Supplier shall maintain a governance plan covering onboarding, role assignment, issue escalation, change control, risk reporting, dependency management, and monthly service review meetings with Buyer.

If a statement of work conflicts with this Agreement, this Agreement controls unless the statement of work expressly identifies the specific clause being modified and is signed by both parties' authorized representatives.

Section 3. Service Management

Supplier shall operate a support desk, maintain incident queues, track service requests, provide root-cause reports for major incidents, and maintain a corrective-action register for repeat issues.

Supplier shall meet the service levels in Schedule B, including response times, resolution targets, reporting cadence, and service-credit calculations for chronic missed commitments.

Supplier shall not change production configurations, network rules, privileged access, or integration endpoints except through the approved change-control process.

Section 4. Governance and Compliance

Supplier shall comply with applicable procurement, anti-bribery, sanctions, export-control, personal-data, cybersecurity, and records-retention requirements that apply to the services.

Supplier shall maintain training records for personnel assigned to Buyer work and shall remove any personnel who fail background, confidentiality, or security requirements reasonably imposed by Buyer.

Supplier shall provide monthly operational reports covering open incidents, change requests, access reviews, subcontractor participation, control exceptions, and remediation status.

Section 6. Data Handling

6.1 Supplier shall process Customer Data only within approved client-controlled systems and only as necessary to perform the services under Buyer's documented instructions.

6.2 Supplier shall not use external or public cloud services for Customer Data unless Buyer gives prior written consent in a signed amendment.

6.3 Supplier shall maintain a current record of processing activities covering location, retention, return, and verified deletion of Customer Data and shall make that record available to Buyer upon request.

6.4 Supplier shall not transfer Customer Data outside the approved operating region without Buyer's prior written consent.

Section 7. Business Continuity

Supplier shall maintain a business continuity and disaster recovery plan proportionate to the services and shall test the plan at least annually.

Supplier shall notify Buyer of material continuity events, failed recovery tests, or unresolved continuity gaps that could affect service availability or data protection.

Supplier shall coordinate continuity exercises with Buyer when a service supports critical operational reporting or time-sensitive logistics processes.

Section 8. Security

8.1 Supplier shall maintain administrative, technical, and physical safeguards consistent with industry standards to protect Customer Data.

8.2 Supplier shall notify Buyer within 48 hours after confirming any security incident affecting Customer Data or service environments.

8.3 Supplier shall maintain documented access control, encryption, logging, and vulnerability management procedures for the services.

8.4 Supplier shall review privileged access quarterly, revoke access promptly when no longer required, and retain security logs for investigation and audit purposes.

Section 9. Confidentiality

9.1 Each party shall protect the other party's Confidential Information using at least reasonable care and no less than the care used for its own comparable information.

9.2 The Supplier may disclose Confidential Information to its Affiliates only on a need-to-know basis and only where such Affiliates are bound by equivalent confidentiality obligations.

9.3 Confidential Information includes operational records, technical architecture, pricing, incident reports, security findings, procurement materials, and any information marked or reasonably understood to be confidential.

Section 10. Audit and Inspection

10.1 Supplier shall provide vendor-selected summary only reports for any audit request and may decline access to underlying control materials.

10.2 Buyer may review the summary reports during quarterly governance meetings, but Supplier is not required to provide third-party assessment records unless Supplier agrees separately.

Section 11. Subcontractors

11.1 The Supplier may grant a subcontractor access to Sensitive Data upon prior notice to the Buyer.

11.2 Any subcontractor engaged by Supplier shall be bound by security and confidentiality obligations no less protective than those in this Agreement.

11.3 Supplier shall maintain a subcontractor register identifying work performed, locations, access categories, and service dependencies, and shall provide the register to Buyer during quarterly governance meetings.

Section 12. Change Control

Each party may request changes through a written change request. A change request must identify business justification, impacted services, cost, timeline, security impact, testing evidence, rollback approach, and approval requirements.

No change is effective unless approved by both parties in writing. Emergency changes may be implemented only where necessary to prevent service disruption or security harm and must be retrospectively documented.

Section 13. Intellectual Property

13.1 The Buyer owns all bespoke Deliverables created under this Agreement. The Supplier retains ownership of pre-existing Background IP and grants the Buyer a perpetual, irrevocable license to use Background IP embedded in the Deliverables.

13.2 Supplier shall not incorporate open-source components, third-party tools, or reusable libraries into Deliverables in a manner that restricts Buyer's internal enterprise use without Buyer's prior written approval.

Section 14. Warranties

Supplier warrants that the services will be performed with reasonable skill and care by qualified personnel and in accordance with the applicable statement of work.

Supplier warrants that Deliverables will materially conform to agreed acceptance criteria for ninety days after acceptance, excluding defects caused by unauthorized Buyer modifications.

Section 15. Liability

15.1 Each party's aggregate liability shall not exceed the fees paid in the preceding twelve months.

15.2 The liability cap does not apply to confidentiality breaches, security or data incidents, intellectual property infringement, fraud, or wilful misconduct.

15.3 Supplier shall indemnify Buyer against third-party claims that a Deliverable infringes a third party's intellectual property rights.

15.4 Neither party excludes liability to the extent such exclusion is prohibited by applicable law.

Section 16. Insurance

Supplier shall maintain commercially reasonable professional liability, cyber liability, employer liability, and general liability insurance during the term and for any required tail period.

Supplier shall provide certificates of insurance upon request and notify Buyer if a policy is cancelled, materially reduced, or not renewed.

Section 17. Termination

17.1 Either party may terminate this Agreement for uncured material breach upon thirty days' written notice.

17.2 Upon termination for material breach or a security incident, the Supplier shall return or verifiably delete all Customer Data and provide reasonable transition assistance.

17.3 Buyer may terminate a statement of work for convenience on sixty days' written notice, subject to payment for accepted services performed before termination.

Section 18. Transition and Exit

Supplier shall cooperate with Buyer and any replacement supplier to support orderly transition, knowledge transfer, data export, access revocation, open-ticket handover, and return of Buyer-controlled materials.

Transition assistance shall be provided at agreed rates unless termination arises from Supplier's uncured material breach or security incident, in which case transition assistance is included for a reasonable period.

Section 19. General

This Agreement, the schedules, and executed statements of work constitute the entire agreement between the parties. Amendments must be in writing and signed by authorized representatives.

Notices must be delivered to the addresses in Schedule D. Neither party may assign this Agreement without prior written consent except to a successor in connection with a permitted corporate reorganization.